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CCS (Joining Time) Rules, 1979

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CCS (Joining Time) Rules, 1979

The Central Civil Services (Joining Time) Rules, 1979 notified vide GSR 695 dated **8th May, 1979** the rules were amended vide Notification GSR 197 dated **10th March, 1989** and again vide GSR 229(E) dated **27th March, 2015**. The essence of various instructions in the matter has been summarized in the following paras for guidance and better understanding:-

Rule 1: Application

Joining Time is granted to a Government Servant when transferred to the control of another Government or organisation, in public interest.

CSS (Joining Time) Rules, 1979 is applicable to all Government servants appointed in Civil Services and posts under the Central Government including work charged staff but shall not apply to:

- (a) Railway employees,
- (b) Armed Forces Personnel and those paid from the defence services estimates, Government servants engaged on contract and those who are not in whole-time employment of Government.
- (c) Government servants engaged on contract and those who are not in wholetime employment of Government.
- (d) Government servants, paid out of contingencies.

Rule 2: Transfer and Deputation

When a Government Servant to whom these rules apply is transferred to the control of another Government or organization, which has made separate rules prescribing amount of joining time, his joining time for the journey to join his post under that Government/organization and for the return journey, will be governed by those rules, unless different provisions are expressly made in the terms of deputation/foreign service by mutual agreement between the lending and borrowing authorities.

The joining time of Railway employees, Armed Forces Personnel and those paid from Defence Services estimates and the employees of State Government or any other organisation, who are appointed to Civil Services and posts under the Central Government on deputation or on foreign service basis, shall, for joining the Civil Services and posts under the Central Government and for the return journeys, be regulated in accordance with these rules unless different provisions are expressly made in their respective terms of deputation/ foreign service, by mutual agreement between the lending and borrowing authorities.

Rule 4: Admissibility of Joining Time

Joining time shall be granted to a Government servant on transfer in public interest to enable him to join the new post either at the same or a new station.

No joining time is admissible in cases of temporary transfer for a period not exceeding **180 days**. Only the actual transit time, as admissible in case of journeys on tour, may be allowed.

The surplus staff transferred from one post to another under the Scheme Regulating Redeployment of Surplus Staff shall be eligible for joining time.

Government servants who are discharged due to reduction of establishment from one Central Government Office and reappointed to another Central Government Office shall be entitled to joining time, subject to certain conditions.

For appointment to posts under the Central Government on the results of a competitive examination and or interview open to Government servants and others, the Central Government employees and permanent/provisionally permanent State Government employees will be entitled to joining time under these rules, if such Government servants opt for having their past service in the Central Government or State Government counted for all purposes in the Central Government.

Transfer on Own Request

Joining time is admissible in case of transfer in public interest. However, when a Government servant is transferred on his own request, the intervening period from relinquishment of charge at the old place of posting and taking charge of at new place, the period may be regularized by grant of leave applicable to him. [OM No. 19011/33/81-Allowances dated 29th January, 1983]

Rule 5: Commencement and Amount of Joining Time

The joining time shall commence from the date of relinquishment of charge of the old post, if the charge is made over in the forenoon or the following date if the charge is made over in the afternoon.

Not more than **one day's** joining time shall be allowed to a Government servant to join a new post within the same station or which does not involve a change of residence from one station to another.

In cases involving transfer from one station to another and also involving change of residence, the Government servant shall be allowed joining time with reference to the distance between the old headquarters and the new headquarters by direct route and ordinary mode(s) of travel as indicated in the following schedule.

The following table:

Distance between the Old headquarter and the new headquarter	Joining Time admissible	Joining Time admissible where the transfer involves necessarily continuous travel by road for more than 200 Kms.
1,000 Kms. or less	10 days	12 days
More than 1,000 Kms.	12 days	15 days
More than 2,000 Kms	15 days except in cases of travel by air for which the maximum will be 12 days.	15 days

Distance means actual distance travelled and not weighted mileage for which fare is charged by the Railways in certain ghat or hill regions. In case of transfer of a Government servant to or from North Eastern Region, including Sikkim, Andaman and Nicobar Islands, Lakshadweep and Ladakh, **two days** additional time shall be admissible over and above the normal joining time reckoned on the basis of actual distance between their old and new place of posting. [Rule 5 and Notification dated **27th March, 2015**]

Special provisions have been made to facilitate journey to and from remote localities, viz, Andaman and Nicobar Islands, Lakshadweep, and also powers have been given to the HoD and Administrators of UTs. [OM No.21011/12/79-Allowances dated **16/11/1979** and O.M.No. 19011/30/81-Allowances dated **13/10/1981**]

Rule 6: Crediting and Combination of Joining Time

The period of unutilized joining time will be credited to Earned Leave account and shall be regulated in terms of the provisions of sub-clause (ii) of clause (a) of sub-rule (1) of rule 26 of the Central Civil Service (Leave) Rules, 1972. Joining time may be combined with vacation and/or regular leave of any kind or duration except casual leave.

If a Government servant in transit on transfer is directed to proceed to a place different from that indicated in the initial transfer orders; he shall be entitled to joining time already availed of upto the date of receipt of revised orders as fresh spell of full joining time from the date following the date of receipt of the revised orders. [Rule 6 and Notification dated **27th March, 2015**]

Rule 7: Joining Time Pay and Allowances

A Government servant on joining time shall be regarded as on duty during that period and shall be entitled to be paid joining time pay equal to the pay which was drawn before relinquishment of charge in the old post, he will also be entitled to DA, if any, appropriate to the joining time pay. In addition, he can also draw compensatory allowances like House Rent Allowance as applicable to the old station from which he was transferred.

 **NOTE:** Substituted for "compensatory allowances like City Compensatory Allowance, House Rent Allowance". References to City Compensatory Allowance (CCA)

have been omitted as the allowance was abolished pursuant to the 6th Central Pay Commission recommendations.

He shall not be allowed Conveyance Allowance or permanent travelling allowance. The joining time pay shall be paid for by the new administrative authority where such Government servant joins on transfer. [Rule 7 and Notification dated **27th March, 2015**]

